

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 1161

Introduced by Juarez, 5; Cavanaugh, M., 6; Hunt, 8; Raybould, 28; Spivey, 13.

Read first time January 20, 2026

Committee:

- 1 A BILL FOR AN ACT relating to minors; to amend section 43-2101, Revised
- 2 Statutes Cumulative Supplement, 2024; to change provisions relating
- 3 to the age of majority; and to repeal the original section.
- 4 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 43-2101, Revised Statutes Cumulative Supplement,
2 2024, is amended to read:

3 43-2101 (1) All persons under nineteen years of age are declared to
4 be minors, but in case any person marries under the age of nineteen
5 years, his or her minority ends.

6 (2) Upon becoming the age of majority, a person is considered an
7 adult and acquires all rights and responsibilities granted or imposed by
8 statute or common law, except that a person:

9 (a) Eighteen years of age or older and who is not a ward of the
10 state may:

11 (i) Enter into a binding contract or lease of whatever kind or
12 nature and shall be legally responsible for such contract or lease,
13 including legal responsibility to third parties;

14 (ii) Execute, sign, authorize, or otherwise authenticate (A) an
15 effective financing statement, (B) a promissory note or other instrument
16 evidencing an obligation to repay, or (C) a mortgage, trust deed,
17 security agreement, financing statement, or other security instrument to
18 grant a lien or security interest in real or personal property or
19 fixtures, and shall be legally responsible for such document, including
20 legal responsibility to third parties; and

21 (iii) Acquire or convey title to real property and shall have legal
22 responsibility for such acquisition or conveyance, including legal
23 responsibility to third parties; and

24 (b) Eighteen years of age or older may consent to mental health
25 services for himself or herself without the consent of his or her parent
26 or guardian; -

27 (c) Under nineteen years of age who is pregnant or who is the parent
28 of a child younger than eight years of age or who is experiencing a
29 pregnancy-related condition, including, but not limited to, complete,
30 incomplete, or threatened miscarriage, stillbirth, ectopic pregnancy,
31 molar pregnancy, or other loss may consent to health care decisions for

1 himself or herself without the consent of such person's parent or
2 guardian. This subdivision does not apply to a person in the custody of
3 the Department of Health and Human Services pursuant to a juvenile court
4 order; and

5 (d) Eighteen years of age or older may make health care decisions
6 for himself or herself without the consent of his or her parent or
7 guardian. This subdivision does not apply if such person is in the
8 custody of the Department of Health and Human Services pursuant to a
9 juvenile court order.

10 **Sec. 2.** Original section 43-2101, Revised Statutes Cumulative
11 Supplement, 2024, is repealed.